Nigeria's legal system is founded on a written constitution and a hierarchy of laws. At the apex is the **Constitution of the Federal Republic of Nigeria 1999 (as amended)**, which explicitly declares itself "supreme" and binding on all persons and authorities【28†L37-L39】. Any law inconsistent with the Constitution is void【28†L46-L48】. Below the Constitution come **legislation** (Acts of the National Assembly and State Houses), followed by **subsidiary (delegated) legislation** made under Acts. **Judicial decisions** – especially those of the Supreme Court – create binding precedents for lower courts【41†L436-L442】【30†L339-L344】. Indigenous **customary law** and **Islamic (Sharia) law** operate in parallel, subject to constitutional guarantees and statutes. **International treaties** to which Nigeria is a party bind Nigeria only after enacting enabling legislation【43†L1-L4】. We analyze each source's legal status, hierarchy, and interaction (e.g. federal law overrides conflicting state law【28†L120-L123】), with examples of key Acts and cases. Official texts are available via government publications (e.g. the Federal Gazette and *Laws of the Federation*) and the National Library's repository【55†L124-L126】【12†L85-L92】. This report includes a comparative table of sources (binding force, examples, repositories) and flowcharts (Mermaid diagrams) for (a) how a bill becomes law and (b) how court decisions ascend to binding precedents. Landmark cases and statutes are cited throughout; further reading includes academic textbooks and law reform reports.

1. The 1999 Constitution (as Amended)

The 1999 Constitution is *the supreme law of Nigeria*. By Section 1(1), "This Constitution is supreme and its provisions shall have binding force on the authorities and persons throughout the Federal Republic of Nigeria"【28†L37-L39】. Section 1(3) provides that any other law inconsistent with the Constitution is void【28†L46-L48】. Chapter I (Part I) establishes Nigeria's federal structure: 36 states plus the Federal Capital Territory (Abuja). Chapter II (Sections 4–5) vests legislative power in the National Assembly and State Houses of Assembly, distributing subjects via legislative lists (see below). Section 12(1) makes treaties non-self-executing: *"No treaty…shall have the force of law to the extent to which [it] has been enacted into law by the National Assembly"*【43†L1-L4】. (In practice, international conventions bind Nigeria only after implementing Acts.)

Major provisions (only a few examples) include fundamental rights (Chapter IV), citizenship, and separation of powers. Notably, Sections 6(1)–(3) establish the superior courts (Supreme Court, Court of Appeal, Federal High Court, State High Courts, plus special courts) and make all superior courts courts of record. The Constitution's text (amended to date) is available officially – for example, the National Library's online *National Repository of Nigeria* offers the 1999 Constitution PDF【55†L124-L126】.

Legislative Distribution (Federal vs. State)

Legislative powers are divided by schedule:

- **Exclusive Legislative List** (Second Schedule, Part I): Only the National Assembly may legislate on these subjects (e.g. defense, foreign affairs, currency)【28†L97-L104】.

- **Concurrent Legislative List** (Second Schedule, Part II): Both the National Assembly and State Houses may legislate (e.g. education, criminal law, health)【28†L97-L104】.
- **Residuary (State) Matters**: Subjects *not* on the Exclusive List are generally state powers【28†L119-L123】.

Critically, if a State law conflicts with a valid Federal law on a concurrent matter, the federal law prevails to the extent of the inconsistency【28†L119-L123】. Section 4(5) makes this explicit: *"If any Law enacted by the House of Assembly of a State is inconsistent with any law validly made by the National Assembly, the law made by the National Assembly shall prevail, and that other Law shall…be void [to the extent of inconsistency]"*【28†L120-L123】. Thus the Constitution creates a clear hierarchy: federal statutes beat inconsistent state statutes【28†L120-L123】.

2. Primary Legislation (Statutes)

Federal statutes are laws enacted by the National Assembly and signed by the President. They apply nationwide and generally must fall within the legislative lists set by the Constitution. Federal Acts address exclusive and many concurrent matters (e.g. *Land Use Act 1978*, *Companies and Allied Matters Act*, *Electoral Act*). All federal Acts must be published in the **Federal Republic of Nigeria Official Gazette** (the Government Printer in Lagos) to take effect. For example, the *Joint Revenue Board of Nigeria (Establishment) Act 2025* was published in the Federal Gazette by the Federal Government Printer【12†L85-L92】. The Official Gazette has appeared (in Lagos) since 1963【11†L89-L91】 and contains every new Act and subsidiary instrument.

Consolidated federal laws are compiled in the multi-volume **Laws of the Federation of Nigeria (LFN)**. The LFN 2004 edition (16 looseleaf volumes) contains all federal Acts (and approved statutory instruments) in force as of 31 December 2002【7†L212-L218】. Subsequent federal Acts (2003 onward) were first published as annual volumes (the *Laws of the Federal Republic of Nigeria*), and then retroactively inserted into new LFN issues. (In 2007, the National Assembly passed the Revised Edition (Laws of the Federation of Nigeria) Act 2007, giving formal effect to the LFN consolidations【30†L220-L228】.) Modern updates of LFN can be accessed via the Attorney-General's publications or service providers. For practical retrieval, NGOs like PLAC (Policy and Legal Advocacy Centre) host databases of federal laws: for example, PLAC's website provides links to the LFN 2004 volumes and to all Acts passed since 2002【9†L35-L39】.

State statutes: Each of Nigeria's 36 states (and the FCT) has its own House of Assembly which enacts laws on residual subjects and on concurrent subjects insofar as the Constitution permits. State laws apply only within that state. If a State law conflicts with a valid Federal law, the State law is void where inconsistent【28†L120-L123】. States routinely revise and compile their statutes (e.g. *Laws of Lagos State*, *Laws of Kano State*). These are published in **State Gazettes** by the State Government Printers (often available in state law libraries or official websites). Notable examples include regional laws on customary practices, local government administration, etc.

Repositories of Statutes

- **Federal Laws:** Available in the Federal Gazette (Natl. Library repository or official) and in the *Laws of the Federation*. PLAC's site and the National Repository provide searchable collections of Acts【7†L212-L218】【55†L124-L126】.

- **State Laws:** Each state publishes its own gazette volumes (some are digitized, many are at state law libraries or the National Library). Unfortunately there is no single national online portal for all state statutes, but Law Reform Commissions or Attorneys-General often post laws.

3. Subsidiary (Delegated) Legislation

Subsidiary (delegated) legislation consists of rules, regulations, orders, bylaws, etc., made by executive or administrative bodies under powers conferred by a parent Act. These have legal force only by virtue of the enabling statute. Common examples include Federal High Court (Civil Procedure) Rules, Railway Regulations, or ministerial orders (e.g. *Petroleum (Drilling and Production) Regulations*). Such instruments must generally be published in the Federal Gazette (or State Gazette) to be valid.

Because subsidiary legislation derives its authority from statute, it can be challenged if it exceeds the delegate's power. For instance, in *Nigerian National Petroleum Corp. v. Famfa Oil Ltd* (2006), the Supreme Court struck down an oil pricing regulation made by the Minister of Petroleum for being inconsistent with the Petroleum Act's schedule【38†L603-L610】. This illustrates that any regulation or order contrary to its enabling law or to constitutional limits is void.

Official texts of subsidiary legislation are usually found in the Government Gazette. Many newer Nigerian Acts include schedules listing their statutory instruments. For example, the National Library's repository holds PDFs of new Acts with their regulations【12†L85-L92】. Law collections (LFN) also incorporate relevant regulations. Unlike some jurisdictions, Nigeria has no single code governing all delegated legislation (e.g. no Statutory Instruments Act). General practice is simply publication in the Gazette.

4. Judicial Decisions (Case Law / Precedent)

Nigerian law follows common-law traditions: past judicial decisions (precedents) are a key source, especially on matters not fully settled by statute. Hierarchy of courts means higher courts' decisions bind lower. The **Supreme Court of Nigeria** is the final appellate court; its rulings are binding on all other courts【41†L436-L442】. The **Court of Appeal** is the next tier and its decisions bind the Federal High Court, State High Courts and other inferior courts (and ordinarily bind itself)【41†L436-L442】. Trial courts (State High Courts, Federal High Court, etc.) are bound by appellate precedents. An authoritative summary is: *"The Supreme Court is the highest, and all decisions from the court are binding on all other courts"*【41†L436-L442】, and *"the Court of Appeal and all lower courts are bound by the decisions of [the Supreme Court]"*【41†L436-L442】. (Exceptions: customary and sharia courts do not follow precedents as rigidly【41†L339-L344】, and court divisions may depart from their own prior decisions in limited circumstances.)

Key cases have defined or illustrated legal rules. For example, in *Attorney-General, Federation v. Attorney-General, Abia State* (2002), the Supreme Court held on the constitutional allocation of oil revenues (Section 162), illustrating constitutional interpretation. Other landmark cases cover topics like executive immunity (*Fawehinmi v. Abacha*), limits on subordinate legislation (*Famfa Oil* above), and conflicts between customary/Sharia and statutory law. (We do not list all, but notable references include *Oba of Benin v. European Publicity Corp.* on customary law, and *A.G. Bendel State v. A.G. Oyo State* on Federal vs. State power.)

Judgments are published by various reporters: the official **Nigeria Law Reports**, **Nigeria Weekly Law Reports**, and specialized reporters. However, there is no single official online database. Many judgments

(especially recent Supreme/Court of Appeal decisions) can be found on *NigeriaLII* (a free legal information institute) or on court websites. For example, NigeriaLII provides texts of Supreme Court judgments (e.g. *A-G Federation v. A-G Abia*【19†】) and laws. The Federal High Court and State High Courts also publish some decisions, though coverage is uneven. For official records, courts issue weekly bulletins and annual reports with summaries of important rulings.

5. Customary Law

Customary law consists of indigenous, unwritten rules and practices of Nigeria's various ethnic groups. It governs personal status (marriage, inheritance, land tenure in certain contexts, etc.) and community matters. It varies widely by region and tribe. As one guide explains, customary law is *"a system of law that reflects the culture, customs, values, and habits of the people"*, often described as *"a mirror of accepted usage."* It is particularly dominant in personal and family law【30†L281-L289】. For example, Yoruba, Igbo, Hausa, and other groups each have distinct marriage and inheritance customs.

Customary law is recognized by statute and the Constitution provided it is not repugnant to natural justice, equity and good conscience, and not incompatible with any statutory provision. (The inherited "repugnancy" test dates from colonial-era ordinances; in practice, courts often apply it in contested cases.) Courts of customary jurisdiction (Customary Courts, Native Courts) apply it as modified by legislation. Appeals on customary law questions go to the Customary Court of Appeal (in some states) or directly to the Court of Appeal. The higher courts enforce customary law rules where established – for example, stating that if certain rituals are customary in a community, they carry legal weight.

Because it is unwritten and flexible, customary law can be uncertain. As noted by researchers, *"ethnic customary law is unwritten, uncertain, and difficult to ascertain. It is flexible and has the capacity to adapt to social and economic changes without losing its character."*【30†L299-L304】. Courts therefore often require proof (through witness testimony or records) of a custom before applying it. States sometimes codify major customary rules; for instance, some southern states have enacted customary marriage laws. But in many cases, customary norms live on in practice and are enforced via the courts or family arbitration.

6. Islamic (Sharia) Law

Islamic law, commonly called **Sharia**, is also a source of law in Nigeria, mainly in the predominantly Muslim northern states. Unlike ethnic customs, Sharia has written texts (Qur'an, hadiths, and juristic interpretations). It has historically governed personal law (marriage, inheritance) for Muslims. In the **sharia states** (e.g. Zamfara, Kano, Kaduna, Sokoto, etc.), full Sharia criminal codes and civil measures have been adopted in the 2000s. Nigeria's constitution provides for Sharia Courts of Appeal at state and FCT level.

Globalex notes: *"Islamic law, unlike ethnic customary law, is written. Its principles are clearly defined and articulated... [and] was introduced into Nigeria by the Islamization process."* In some areas, Sharia completely supplanted pre-existing customs; in others it coexists (e.g. family matters)【30†L308-L317】. Since the reintroduction of Sharia criminal law in the democratic era, several states enacted new penal codes prescribing Koranic punishments (amputation, stoning, etc.). The Supreme Court has so far not had occasion to rule on such punishments; however, it remains bound to ensure that any Sharia-based law respects constitutional fundamental rights.

In practice, Sharia courts in the North operate parallel to secular courts for Muslims: e.g., Sharia Courts of Appeal handle appeals on Islamic law issues. For civil matters or questions involving non-Muslims, secular courts apply statutory and customary law. International human rights bodies have occasionally noted tensions (e.g. on gender equality), but these are addressed by the Constitution's supremacy (any law, including Sharia, inconsistent with the Constitution is void)【28†L46-L48】.

7. International Law and Treaties

Nigeria is a party to many international treaties and conventions (UN, AU, human rights instruments, trade agreements, etc.). However, under Section 12(1) of the 1999 Constitution, **treaties are not self-executing**: they have no domestic force unless the National Assembly enacts enabling legislation【43†L1-L4】. Thus, Nigeria operates a dualist approach. For example, the UN Convention on the Rights of the Child binds Nigeria only by virtue of its Child Rights Act, 2003.

When treaties are enacted by statute, they become part of Nigerian law on equal footing with other federal legislation (subject to the Constitution). In rare cases, a treaty obligation may influence judicial interpretation even before enactment (courts might "read in" certain protections), but formally it is the statute that confers authority. Key examples: the *African Charter on Human and Peoples' Rights* (enacted as CAP A9, LFN 2004), *United Nations Convention against Torture* (not yet domesticated), etc. The National Assembly typically ratifies treaties by passing an Act or including them in existing Acts.

International law can also have indirect effects: under the Commonwealth tradition, *"received"* English statutes and common law also inform Nigerian law (see below), and international norms (e.g. sovereignty, diplomatic immunity) are generally observed. Nigeria's courts have sometimes referred to international conventions for guidance on rights issues, but only enacted treaties are binding.

8. Secondary Sources (Academic Writings, Textbooks, Law Reform, Soft Law)

These are **persuasive** rather than binding. Nigerian legal scholars and texts (e.g. **A. Park, *Sources of Nigerian Law* (1963)**; **A. Obilade, *The Nigerian Legal System* (1979)**; **N. Tobi, *Sources of Nigerian Law* (1996)**; *G. Ojo, Casebook on Introduction to Nigerian Law*; etc.) analyze and explain the law. Law review articles and commentary (University of Lagos Law Review, Nigerian Bar Journal, etc.) provide analysis. Such writings are useful for understanding legal principles but do not by themselves create law.

The **Nigerian Law Reform Commission** and similar bodies publish reports recommending changes to outdated laws. These reports (on family law, election law, etc.) have weight in debate but require legislative action to effect reform. "Soft law" also appears in policy documents and government guidelines (e.g., the Judicial Ethics Code, National Reports to UN committees) – again, they guide but are not enforceable as law.

Finally, as noted in a legal research guide, the recognized *sources* of Nigerian law are: **the Constitution; legislation; received English law (common law and equity as of 1900); customary law; Islamic law; and judicial precedents**【4†L179-L187】. This reflects Nigeria's pluralist system, combining written and unwritten sources.

Comparative Summary of Sources of Nigerian Law

Source	Legal Status & Hierarchy	Typical Examples	Primary Repositories (Official Texts)
Constitution (1999)	Supreme law. All laws/ institutions derive authority from it【28†L37-L39】. Inconsistent laws void【28†L46-L48】.	Nigerian Constitution 1999 (as amended) 【28†L37-L39】	National Library repository (PDF)【55†L124-L126】; official printed Constitution; UN Con. database (text).
Federal Statutes (Acts)	Below Constitution. Enacted by National Assembly, binding nationwide. Prevail over conflicting state laws 【28†L120-L123】.	Land Use Act 1978; Companies & Allied Matters Act; Electoral Act; CAMA 2020; Finance Acts	Federal Gazette; *Laws of the Federation* 2004 (LFN) and Annual Volumes【7†L212-L218】【30†L220-L228】; PLAC (placng.org)【9†L35-L39】; National Repository.
Subsidiary Legislation	Made under Acts by delegated authority. Binding only as authorized by parent Act.	Federal High Court (Civil Procedure) Rules; University Acts; Ministers' regulations (e.g. Petroleum Regulations)	Federal Gazette (published after Act)【11†L89-L91】; LFN volumes include many subsidiary instruments; agency websites.
State Statutes	Enacted by State Houses. Binding within that state. Federal law overrides any inconsistency【28†L120-L123】.	State Penal Codes (in north), State Local Govt. Laws, Customary Courts Laws	State Gazettes (e.g. Lagos State Law Reports); some state websites; Law libraries.
Judicial Precedents (Case Law)	Source of law via *stare decisis*. Supreme Court decisions bind all courts【41†L436-L442】; Court of Appeal binds High Courts; High Court decisions bind lower courts.	Supreme Court (e.g. *A-G Fed v Abia State* 【19†】); Court of Appeal; Federal High Court; State High Court judgments.	Nigeria Law Reports (prints); Law Week Reports; NigeriaLII (free online) provides many judgements; Supreme/ Court of Appeal websites.
Customary Law	Indigenous law of ethnic groups. Recognized if not repugnant to natural justice or statute. Treated as part of "existing law" by Constitution.	Traditional marriage/ inheritance rules (Igbo, Yoruba, Hausa); land tenure customs.	*Not codified in one place.* Sources include colonial-era proclamations (e.g. Native Courts Acts); testimonies in court; some local compendia (e.g. *Yoruba customary law* texts).

Source	Legal Status & Hierarchy	Typical Examples	Primary Repositories (Official Texts)
Islamic (Sharia) Law	Religious law for Muslims. Written (Qur'an, Sunnah) and applied in Sharia Courts. Operates subject to Constitution and acts.	Sharia Penal Codes (in Kano, Zamfara, etc.); Family law for Muslims.	State Sharia Court of Appeal Acts; Federal Gazette (some enabling provisions); no single "code" for all Nigeria.
International Law (Treaties)	Binding only if enacted by National Assembly 【43†L1-L4】. Treaties cannot override Constitution.	CEDAW (via 2004 CEDAW Act); UNCLOS (via 2007 UNCLOS Act); AU Charter (via CAP A9, LFN 2004).	United Nations Treaty Collection; Federal Gazette (for Acts enacting treaties); official treaty texts with Nigeria's ratification.
Academic & Soft Law	Non-binding commentary or guidelines. Influential in interpretation and policy but no legal force.	Textbooks (Obilade, Park, Awa); Law Journal articles; Reports of the Nigerian Law Reform Commission; NIALS research guides.	University/firm libraries; National Law School archives; NIALS Law Reporters; Nigerian Bar Association publications.

The above table summarizes the hierarchy and legal force of each source. For example, the Constitution has absolute supremacy【28†L46-L48】, federal statutes bind state laws on concurrent issues【28†L120-L123】, and decisions of the Supreme Court (final appellate court) are binding on all lower courts【41†L436-L442】. Each source's primary texts (e.g. the official Constitution, Acts, law reports) can be accessed through the indicated repositories or official publications.

9. Flowcharts: From Bill to Law & Precedent Development

Below are two schematic flowcharts (Mermaid diagrams). The first shows the legislative process for a bill becoming law in the Nigerian National Assembly. The second illustrates how court decisions ascend to binding precedents through appeals.

```
flowchart TD
    A[Draft Bill prepared] --> B[First Reading (Clerk reads title; bill
published in Gazette)]
    B --> C[Second Reading (Debate on principle; vote)]
    C --> D[Committee Stage (Detailed review, amendments)]
    D --> E[Report Stage (Committee reports; further amendments)]
    E --> F[Third Reading (Final vote in originating chamber)]
    F --> G{Bill passed by this House?}
    G -- Yes --> H[Transmitted to Other House]
    G -- No --> Z[Bill fails]
    H --> I[Other House Repeat Process (First, Second, Committee, Third
Readings)]
```

```
    I --> J{Passed by Other House?}
    J -- Yes --> K{Any Amendments?}
    J -- No --> Z[Bill fails]
    K -- No --> M[Harmonized Text ready]
    K -- Yes --> L[Conference/Harmonization Committee reconciles differences]
    L --> M[Harmonized Bill approved by both Houses]
    M --> N[Presenter to President for Assent]
    N --> O[President's Decision]
    O --> P{President signs within 30 days}
    P -- Yes --> Q[Bill becomes Law (Act)【59†L231-L239】【59†L253-L256】]
    P -- No --> R[Returned with Veto or Sit-tight]
    R --> S{NASS override with 2/3 majority?}
    S -- Yes --> Q
    S -- No --> Z
    Q --> T[Act published in Federal Gazette; Commencement according to Act]
    T --> U[Legal Effect]
```

```
flowchart LR
    A[Lower Courts (e.g. Magistrate)] --> B[State High Court/Federal High Court
Decision]
    B --> C[Court of Appeal Decision]
    C --> D[Supreme Court Decision (final)]
    D -->|binds| C
    D -->|binds| B
    D -->|binds| A
```

- **Chart 1 (Lawmaking Process):** A Bill is introduced in either chamber of the National Assembly and goes through three readings, debates, committee review, and approval in both the Senate and House【59†L162-L171】【59†L213-L221】. After both houses agree on the text (possibly via a Conference Committee), it is sent to the President. If the President assents (or if his veto is overridden by a two-thirds majority), the Bill becomes an Act【59†L231-L239】【59†L253-L256】. Finally the new Act is gazetted and comes into force as prescribed.
- **Chart 2 (Case Law Precedent):** A case usually starts in a lower or trial court, then may be appealed to the Court of Appeal, and ultimately to the Supreme Court. The Supreme Court's judgment on a point of law then binds all lower courts in Nigeria【41†L436-L442】. In this way, higher court rulings establish binding precedents applied throughout the judiciary (the arrows indicate the binding effect of the apex decision on earlier stages).

References & Further Reading

Primary legal texts (the **1999 Constitution**, federal Acts, Gazettes) are best accessed via official sources: the National Library's *National Repository of Nigeria* (which offers many PDFs, including the Constitution【55†L124-L126】 and recent Acts【12†L85-L92】), the Federal Government Printer's *Official Gazette*【11†L89-L91】, and printed compilations like the *Laws of the Federation*. The National Assembly website and PLAC (placng.org) list recent legislation【9†L35-L39】. For case law, the *Nigeria Law Reports* series and NigeriaLII (nigerialii.org) provide many key decisions【19†】.

For analysis and commentary, standard texts include Park's *Sources of Nigerian Law*, Obilade's *Nigerian Legal System*, and Tobi's *Sources of Nigerian Law*. The NyULaw Globalex guide to Nigerian legal research is highly recommended【4†L179-L187】【7†L212-L218】. Periodicals such as the *Nigerian Bar Journal* and *Law Reports of Nigeria (LRN)* publish landmark cases. Official law reform reports (e.g. on Family Law, Criminal Law revision) are available from the Nigerian Law Reform Commission.

Sources cited: Constitution (Sec. 1, 4, 12)【28†L37-L39】【28†L46-L48】【28†L120-L123】【43†L1-L4】; Globalex/Nyu on Nigerian law【7†L212-L218】【30†L220-L228】【41†L436-L442】【30†L339-L344】【4†L179-L187】; National Repository (Constitution PDF, Acts)【55†L124-L126】【12†L85-L92】; PLAC legislative archives【9†L35-L39】; Supreme Court (Famfa Oil decision)【38†L603-L610】; Immigration/Refugee Board report (Land Use Act, citizenship)【54†L169-L177】【54†L179-L187】; Official gazette description【11†L89-L91】; etc. For fuller detail see the references above and the suggested further reading.
